BEFORE THE OFFICE OF ADMINISTRATIVE HEARINGS

In the Matter of: Uncle Harry Corp., Appellant.	))))))))))))	Case No.: 2024C-MMR-0040-DHS NOTICE OF HEARING AND APPOINTMENT OF ADMINISTRATIVE LAW JUDGE

PURSUANT TO the request of the Appellant, you are hereby notified that the Office of Administrative Hearings, on behalf of the Arizona Department of Health Services (the "Department"), will conduct a hearing at 1740 W. Adams St., Lower Level, Phoenix, AZ 85007 on September 27, 2023 at 8:00 a.m. to consider the Department's July 19, 2023 Notice of Intent to Revoke Dispensary Registration Certificate.

YOU ARE ADVISED that the hearing will be conducted under the authority of and in accordance with Arizona Revised Statutes ("A.R.S.") Title 36, Chapter 28.1, and Title 41, Chapter 6, Article 10, and Arizona Administrative Code ("A.A.C.") Title 9, Chapter 17.

YOU ARE ADVISED that you have the right to be represented by counsel or to proceed without counsel. A.R.S. § 41-1092.07.

Any supporting documents to this matter submitted to the Clerk of the Department at the time of the request for an administrative hearing are not part of the administrative record with the exception of documents that set in place the request for an administrative hearing. Documents may be submitted into evidence at the scheduled administrative hearing before the assigned administrative law judge.

YOU ARE FURTHER ADVISED that failure to appear at the scheduled hearing may result in the administrative law judge dismissing the matter or otherwise deciding the case against you.

The Office of Administrative Hearings has appointed Kay Abramsohn, Office of Administrative Hearings, as administrative law judge to conduct such hearing and issue such orders pursuant to the Office of Administrative Hearings' procedural rules and the procedural rules that the administrative law judge determines are necessary to properly adjudicate the above-captioned matter. **Information regarding procedures, practice pointers, on-line filing of motions, such as making requests to appear telephonically, is available through Office of Administrative Hearings' website at www.azoah.com.**

In accordance with A.R.S. § 41-1092.08, the administrative law judge shall submit to the Director of the Department a written recommendation including proposed findings of fact, conclusions of law, and a recommended decision regarding the disposition of this matter.

The original of all correspondence and pleadings to be filed in the matter should be directed to the Office of Administrative Hearings, 1740 W. Adams St., Lower Level, Phoenix, AZ 85007. Please provide copies to all other parties and to the agency at the address listed below.

Persons with a disability may request a reasonable accommodation, such as a sign language interpreter, **by visiting www.azoah.com, and submitting an on-line motion, by mail** to the Office of Administrative Hearings, 1740 W. Adams St., Lower Level Phoenix, AZ or **by calling (602) 542-9826**. Requests should be made as early as possible to allow time to arrange the accommodation.

Dated this 22nd day of August, 2023.

Stacie Gravito
Director's Designee

ORIGINAL filed on the 22nd day of August, 2023 with:

Clerk of the Department
Arizona Department of Health Services
150 N. 18th Ave., Ste. 200
Phoenix, AZ 85007

COPY of the foregoing sent by certified mail return receipt requested on the 22nd day of August, 2023:

Ramzi Dugum, Owner
Michael Anton, Owner
Uncle Harry Corp.
2937 W. Thomas Rd.
Phoenix, AZ 85017

Heather Boysel
Gammage & Burnham, PLC
40 N Central Avenue 20th floor
Phoenix, Az 85004

COPIES of the foregoing sent by electronic/interdepartmental/regular mail on the 22nd day of August, 2023, to:

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Michael Anton, Owner
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Kay Abramsohn, Administrative Law Judge
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